A Judge of High Court must have the following qualification:

- He must be a citizen of India
- He must have at least ten years' experience as an advocate in one or more High Courts.

A Judge of High Court holds the office until he completes the age of 62 years. A Judge of the High Court can be removed from office only for proven misbehaviour or incapacity and only in the same manner in which a Judge of the Supreme Court is removed.

Power and Functions of the High Court

- The High Court has been empowered to issue writs of Habeas corpus, Mandamus, Prohibition, Certiorari and Quo Warranto for the enforcement of the fundamental rights and for other purposes.
- Every High Court has a general power of superintendence over all the lower courts and tribunals within its jurisdiction except military courts and tribunals.
- If a case is pending before a sub – ordinate court and the High Court is satisfied that it involves a substantial question of the constitutional law, it can take up the case and decide it itself.
- The High Court controls all the subordinate courts in the State.
- Like the Supreme Court, the High Court also acts as a Court of Record.

For the purpose of judicial administration, each state is divided into a number of districts, each under the jurisdiction of a district judge. The district court Judges were appointed by the Governor. In the exercise of the above mentioned powers, the High Court enjoys full powers and freedom to act within its jurisdiction. The constitutional safeguards have ensured its independent working.

Governments seeking the welfare of the people enact laws and implement various schemes to promote and protect the interests of their citizens.Differences between acts and schemes are as follws:

Acts

1. In State legislature, the Bill passed with the support of majority members and signed by the Governor becomes a law. Debates and discussions take place on the bill. Amendments may be made as a result of the discussions. If majority members vote in favour of the bill, it is said to be passed.
2. In democratic form of governments, the practice is that any bill must be presented in the legislature, debated and passed by majority votes.
3. If the benefits of the acts passed by the legislature is not obtained by a individual, he/she can file a suit in the appropriate court and get remedies.

Schemes

1. Schemes are designed to benefit all the people or a certain section of the people as per the policies laid down by the government from time to time. These schemes can be designed for short term. Expenditure for the schemes is allocated in the financial statement (budget) passed by the legislature every year
2. The goverment introduces new schemes through resolutions passed by the council of ministers.
3. To avail the benefit of the schemes one has to apply through the concerned departmental offices.

UNIT 1_Civics.indd 174 01/04/2024 14:37:44